

23STCV01355 23STCV01355

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 23STCV01355 Hearing Date: July 30, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

23STCV01355

SYLVIA

MONTENEGRO vs LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION AUTHORITY

July

30, 2026

8:30

AM

NATURE OF PROCEEDINGS:

MOTION FOR SUCCESSOR IN INTEREST WENDY MONTENEGRO TO SUBSTITUTE IN FOR DECEASED PLAINTIFF AND GRANTING LEAVE TO FILE SUPPLEMENTAL COMPLAINT.

RULING:

The Court grants the unopposed Motion.

It is ordered that this action be continued by WENDY MONTENEGRO, as successor in interest, in place of deceased Plaintiff SYLVIA MONTENEGRO.

The requested Supplemental Complaint may be served and filed, as a separate document, within 20 days.

Plaintiff's successor in interest to give notice.

I.
BACKGROUND

On January 20, 2023, SYLVIA MONTENEGRO (Plaintiff) filed a form Complaint against LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION AUTHORITY (Defendant), including Causes of Action for: 1) Motor Vehicle and 2) General Negligence.

Plaintiff alleges that Defendant's bus collided with another vehicle, causing her to be thrown forward and to impact another seat, causing severe injuries.

On June 17, 2026, Successor-in-Interest WENDY MONTENEGRO filed the Motion to Substitute in for Deceased Plaintiff.

No Opposition has been filed to this matter.

II.
LEGAL STANDARD

"It is the general policy that courts should exercise liberality in permitting the filing of supplemental pleadings when the alleged 'occurring-after' facts are pertinent to the case.... Nonetheless, the motion to file a supplemental pleading

is addressed to the sound legal discretion of the court, and its ruling will not be disturbed on appeal in the absence of a showing of a manifest abuse of that discretion." (Flood v. Simpson (1975) 45 Cal.App.3d 644, 647.)

Upon motion, or ex parte application, courts may enter appropriate orders for substituting or appointing a decedent's personal representative or successor-in-interest. (Code Civ. Proc., §377.31; Kittle v. Bellegarde (1890) 86 Cal. 556, 563 ["The substitution of one party for another, by order of court, is not such an amendment of a pleading as is required to be made on notice,..."]; Cal. Prac. Guide Civ. Pro. Before Trial §§ 2:501.1, 9:349.2; Ex Parte Application and Order Substituting Party, Cal. Prac. Guide Civ. Pro. Before Trial Forms, Form 2:10.)

Causes of action that survive a plaintiff's death may be commenced by the decedent's appointed personal representative or a successor-in-interest. (Code Civ. Proc., §§377.30, 377.34.) After the death of a person who commenced an action, courts "shall" allow the pending action to be continued by the decedent's personal representative or, if none, the successor in interest, defined as the beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action. (In re Marriage of Drake (1997) 53 Cal.App.4th 1139, 1152.)

III.

ANALYSIS

The Motion contains a request for leave to file a Supplemental Complaint to substitute into this case as personal representative and/or successor in interest for the deceased Plaintiff.

A successor-in-interest must file a declaration with specified elements and a death certificate (Code Civ. Proc., §377.32) and failure to do so can result in a plea in abatement until one is filed. (Aghaian v. Minassian (2021) 64 Cal.App.5th 603, 614 ["That Plaintiffs failed to immediately file their section 377.32 declarations, therefore, does not render the original complaint and FAC nullities."]; Parsons v. Tickner (1995) 31 Cal.App.4th 1513, 1523.)

“[S]ection 377.10 of the

Code of Civil Procedure provides that the ‘beneficiary of the decedent’s estate’ is (1) ‘the sole beneficiary or all of the beneficiaries who succeed to a cause of action, or to a particular item of property that is the subject of a cause of action, under the decedent’s will’ ‘[i]f the decedent died leaving a will,’ or (2) ‘the sole person or all of the persons who succeed to a cause of action, or to a particular item of property that is the subject of a cause of action, under [the laws of intestate succession]’ ‘[i]f the decedent died without leaving a will.’” (Lickter v. Lickter (2010) 189 Cal.App.4th 712, 722.) Code of Civil Procedure section 377 .11 defines the term “‘decedent’s successor in interest’” as “the beneficiary of the decedent’s estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action.”

Here, WENDY MONTENEGRO satisfactorily declares that she is the sole successor of decedent, no person has a superior right to be substituted, she is the lawful next of kin who never had children, and she was Plaintiff’s primary caregiver.

IV.

CONCLUSION

The Court grants the Motion.